

1	Kwak vs. Progeny Psychiatric Clinic 30-2025-01482453	<u>Motion to Strike</u> Defendant Progeny Psychiatric Clinic’s Motion to Strike Plaintiff’s Claim for Punitive Damages is GRANTED with 15 days leave to amend. <u>Pending Motion</u> Defendant Progeny Psychiatric Clinic moves to strike the request for punitive damages in Paragraph 14(a)(2) of Page 3 of the Complaint – Personal Injury, Property Damage, Wrong Death (Complaint) filed by Plaintiff Deborah Kwak. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).)
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		"In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).) In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.) Conduct carried on with a willful and conscious disregard of the rights or safety of others, but that is not "despicable," will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) "Despicable conduct" refers to circumstances that are so vile, base, or contemptible that it would be looked down on and despised by reasonable people. (<i>Ibid.</i>; <i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as "having the character of outrage frequently associated with crime." (<i>Scott v. Phoenix Schools, Inc., supra</i>, 175 Cal.App.4th at p. 715.)
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2	Selski vs. Providence Mission Hospital Mission Viejo 30-2025-01513378	<u>Motion to Compel Arbitration</u> Defendant THC – Orange County, LLC's (erroneously sued as Kindred Hospital Brea) Motion to Compel Arbitration and Stay the Proceedings is taken OFF CALENDAR pursuant to the Stipulation to Arbitration Following Mediation and the Order thereon issued May 22, 2026 (ROA #64).
3	Hatter vs. Knott's Berry Farm, LLC 30-2025-01513936	<u>Demurrer</u> Defendants Knott's Berry Farm, LLC's and Cedar Fair, L.P. dba Cedar Fair Entertainment Company's (erroneously sued as Cedar Fair Entertainment Company) Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 2nd and 3rd Causes of Action. If Plaintiff Markeita Lemetrea Hatter does not amend the Complaint for Damages within the period of time stated above, Defendants Knott's Berry Farm, LLC and Cedar Fair, L.P. dba Cedar Fair Entertainment Company shall file an answer or other pleading in response to the remaining cause of action of the Complaint for Damages within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendants Knott's Berry Farm, LLC and Cedar Fair, L.P. dba Cedar Fair Entertainment Company (erroneously sued as Cedar Fair Entertainment Company) demur to the 2nd